

STUDENT DISCIPLINE

The Moyers Board of Education believes that the school's primary goal is to educate, not to discipline. However, education includes establishing norms of social behavior and assisting students in understanding and attaining those norms. Occasionally, corrective actions are necessary for the benefit of the individual and the school. The teacher in a public school has the same rights as a parent or guardian to control and discipline a child while the child is in attendance, in transit to or from the school, or participating in any authorized school function. Further, it is the policy of the district that students may be disciplined for any misconduct related to the programs or activities of the district. No teacher or administrator will administer formal discipline to his or her own child on behalf of the school except in cases of disruption in the classroom or common areas. Disciplinary matters concerning children of school employees will be handled by the appropriate principal or the superintendent or the superintendent's designee. The superintendent's child will be disciplined by someone other than the superintendent.

Each student shall be treated in a fair and equitable manner. Disciplinary action will be based on a careful assessment of the circumstances surrounding each infraction. The following are some examples of these circumstances:

- The seriousness of the offense;
- The effect of the offense on other students;
- Whether the offense is physically or mentally injurious to other people;
- Whether the incident is isolated or habitual behavior;
- The manifestation of a disability;
- Any other circumstances which may be appropriately considered.

Standards of behavior for all members of society are generally a matter of common sense. The following examples of behavior are not acceptable in society generally, and in a school environment particularly. The involvement of a student in the kind of behavior listed below will generally require remedial or corrective action. These examples are not intended to be exhaustive, and the exclusion or omission of unacceptable behavior is not an endorsement or acceptance of such behavior. When, in the judgment of a teacher or administrator, a student is involved or has been involved in unacceptable behavior, appropriate remedial or corrective action will be taken.

1. Unexcused lateness to school
2. Unexcused lateness to class
3. Cutting class
4. Leaving school without permission
5. Refusing detention/late room
6. Smoking
7. Truancy
8. Possessing or using alcoholic beverages or other mood-altering chemicals
9. Stealing
10. Forgery, fraud, or embezzlement
11. Assault, physical and/or verbal
12. Fighting
13. Possession of weapons or other items with the potential to cause harm
14. Distributing obscene literature
15. Destroying/defacing school property

STUDENT DISCIPLINE (Cont.)

16. Racial discrimination including racial slurs or other demeaning remarks concerning another person's race, ancestry, or country of origin and directed toward another student, an employee, or a visitor
17. Sexual harassment
18. Gang related activity or action
19. Cheating

In administering discipline, consideration will be given to alternative methods of punishment to ensure that the most effective discipline is administered in each case. In all disciplinary action, teachers and administrators will be mindful of the fact that they are dealing with individual personalities. The faculty may consider consultation with parents to determine the most effective disciplinary measure.

In considering alternatives of corrective actions, the faculty/administration of the school district will consider those listed below. However, the school is not limited to these alternative methods, nor does this list reflect an order or sequence of events to follow in disciplinary actions. The board of education will rely upon the judgment and discretion of the administrator to determine the appropriate remedial or corrective action in each instance.

1. Conference with student
2. Conference with parents
3. In-school suspension
4. Detention
5. Referral to counselor
6. Behavioral contract
7. Changing student's seat assignment or class assignment
8. Requiring a student to make financial restitution for damaged property
9. Requiring a student to clean or straighten items or facilities damaged by the student's behavior
10. Restriction of privileges
11. Involvement of local authorities
12. Referring student to appropriate social agency
13. Suspension
14. Other appropriate disciplinary action as required and as indicated by the circumstances which may include, but is not limited to, removal from eligibility to participate or attend extracurricular activities as well as removal from the privilege of attending or participating in the graduation ceremony, school dances, prom, prom activities, and/or class trips.

Parents, guardians, and students enrolled in this school district shall be notified at the beginning of each school year that this policy is in effect. A copy of this policy will be made available upon request to parents or guardians at any time during the school year.

Parents, guardians, and students residing in this school district are also advised by means of this policy statement and by the student handbook that students in this district shall have no reasonable expectation of privacy rights towards school officials, in school lockers, desks, or other school property. School personnel shall have access to school lockers, desks, and other school property at any time and no reason shall be necessary for such search. Student property may be searched with reasonable suspicion.

Teachers, parents, guardians, and students are invited and encouraged to participate in the formulation of disciplinary policies, rules, and regulations by suggesting to administrators appropriate means of discipline for specific infractions.

STUDENT DISCIPLINE (Cont.)

REFERENCE: 10 O.S. §7115
70 O.S. §6-114
70 O.S. §24-101.3

THIS POLICY REQUIRED BY LAW.

CONTROL AND DISCIPLINE POLICY

The board of education believes that the school's primary goal is to educate, not discipline. However, when the behavior of an individual student interferes with the rights of others, corrective action may be necessary for the benefit of the individual as well as the school. A student who has been suspended for a violent offense directed towards a teacher shall not be allowed to return to that teacher's classroom without the approval of that teacher.

Oklahoma Law, Title 70, Section 6-114, provides teachers with the same rights as parents to control and discipline school children in accordance with local school policies. The following schedule of infractions is provided as an aid to teachers in exercising control and discipline of students. The schedule is not intended to include all possible infractions. Therefore, behavior that is not included in the following schedule may warrant appropriate disciplinary measures. The following schedule shall not be used in determining discipline for any child on an IEP or Section 504 plan until such time as the student's IEP team has determined that the infraction is in no way a manifestation of that student's disability.

<u>Infractions</u>	<u>Minimum Action <</u>	<u>> Maximum Action</u>
1. Unexcused tardiness	---- Refer to Attendance Policy ----	
2. Disruption of class or assembly	School Conference	Parent Conference Suspension
3. Lunchroom misconduct	School Conference	Parent Conference Suspension
4. Bus/playground misconduct	---- Refer to Bus Conduct Policy ----	
5. Negligence in completing classwork	School Conference	Parent Conference Suspension
6. Cutting class	---- Refer to Attendance Policy ----	
7. Leaving school without permission	---- Refer to Leaving School Grounds (Closed Campus) Policy ----	
8. Truancy	---- Refer to Attendance Policy ----	
9. Tobacco on school grounds	School Conference	Parent Conference Suspension ¹
10. Drugs or Alcohol possession	Parent Conference	Suspension ^{1, 2}
11. Gambling	School Conference	Parent Conference Suspension
12. Theft	Parent Conference	Suspension ^{1, 2}
13. Assault-physical or verbal	Parent Conference	Suspension ^{1, 2}
14. Fighting	Parent Conference	Suspension
15. Destruction of property, vandalism	Parent Conference	Suspension ^{1, 2}
16. Threats/Harassment	School Conference	Parent Conference Suspension ²
17. Extortion	School Conference	Suspension ^{1, 2}
18. Refusal to obey school officials	School Conference	Parent Conference Suspension
19. Possession of weapons or other items with the potential to cause harm		Suspension ²

¹ May require counseling and rehabilitative efforts before reinstated in school programs

² May require notification of legal authorities

Other possible corrective actions include warning students that continued infraction may result in more severe consequences, removing students from class, before or after school detention, alternative placements, financial restitution, if necessary, and referral to social agencies, if appropriate. The administration may impose punishment that would prevent a student from participation in and attendance at extracurricular activities. In addition, student discipline consequences may include an inability to participate in the graduation ceremony, prom, prom activities, school dances, and/or a class trip.

Suspension alternatives may include in-house suspension or out-of-school suspension. Refer to the Suspension Policy (see policy FOD) for requirements for short-term suspensions (1-10 days) and long term suspensions (11 or more days).